

cases, if the lord purchases parcel of the tenancy, such entire services, not annual, shall be as well extinct as the like annual services.

3. It was resolved, that if John Barney had first enfeoffed John Chapman the father, of the said three acres of pasture, and afterwards had enfeoffed the lord of the said three acres of land, and notwithstanding, the heriot service had remained for the land which John Chapman the father held; and the reason is, because John Chapman, by his purchase of three acres, held by one several and distinct tenure of heriot service, and therefore the purchase of the lord of any part of the residue which John Barney held, would extinguish only the heriot which he ought to render, and not the heriot which John Chapman by reason of his distinct and separate tenure ought to pay.

4. There is a difference between heriot service, and heriot (a) custom as to the extinguishment thereof, when [106 b] the lord purchases parcel of the tenancy: for if the lord purchases parcel of the tenancy, the heriot service is extinct: but if the custom of the manor be, that upon the death of every tenant of the manor, who dies seised of any lands held of the same manor, the lord shall have a heriot; although the lord purchases part of the tenancy, yet the lord shall have a heriot by the (b) custom of the manor for the residue, for he remains tenant to the lord, and the custom extends to every tenant. *Vide*, reader, the books cited in the case of *Bruerton*,† by which these differences, with the reason of them, will appear.

[107 a] DR. BONHAM'S CASE.

Mich. 6 Jacobi 1.

In the Common Pleas.

[See *Kemp v. Neville*, 1861, 10 C. B. N. S. 552.]

London, ss. Henry Atkins, of London, doctor in physic; George Turner, of London, doctor in physic; Thomas Moundford, of London, doctor in physic; John Argent, of London, doctor in physic; John Taylor, of London, yeoman; and William Bowden, of London, yeoman; were attached to answer to Thomas Bonham, of London, doctor in philosophy, and in physic, of a plea, wherefore they, together with William Dun, of London, doctor in physic, and Richard Ware, of London, skinner, with force and arms, him the said Thomas Bonham took, imprisoned, evilly treated, and him in prison, against the law and custom of the kingdom of England, did long detain, and other wrongs to him did, to the great damage of him the said Thomas Bonham, and against the peace of the lord the now King, &c. And whereupon he the said Thomas Bonham, by Richard Coke, his attorney, complaineth, that the aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, together with, &c. on the 10th day of November, in the fourth year of the reign of the said lord the now King, with force and arms, him the said Thomas, in the parish of the Blessed Mary-le-Bow, in the ward of Cheap, took and imprisoned, and evilly treated, and him there so in prison, for a long time, that is to say, by the space of seven days, against the law and custom of this kingdom of England, detained, and other wrongs, &c. to the great damage, &c. and against the peace, &c. Whereupon he saith, that he is injured, and hath damage to the value of 300l. and therefore he bringeth suit, &c. And the [107 b] aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, by Francis Barker, their attorney, come and defend the force and injury, when, &c. And as to the coming with force and arms, they say, that they are not thereof guilty, and of this they put themselves upon the country; and the aforesaid Thomas Bonham likewise; and as to the rest of the trespass and imprisonment aforesaid, above supposed to be done, the said Henry,

(a) Co. Lit. 149 b. 2 Brown. 296. Plowd. 95, 96.

(b) Watk. Cop. 160. Co. Lit. 149 b. 2 Brown. 296. 8 H. 7. 11.

† 6 Co. 1, 2, &c.